

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JUNE 9, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, June 9, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, June 8, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

PLEASE NOTE THE SPECIAL DATE FOR ORAL ARGUMENT: Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard on **June 16, 2026** at 8:30 a.m. in Department 42, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0095239 Rustin-Verdugo, Daniel v. Baumann, River

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Be Relieved as Counsel

Counsel Allan R. Frumkin's unopposed motion to be relieved as counsel for plaintiffs Daniel Rustin-Verdugo and Sage Rustin-Verdugo is granted, effective upon the filing of a proof of service of the signed order on all parties. Counsel is directed to forthwith submit to the court an amended proposed order (form MC-053) that includes plaintiffs' contact information at item 6 and the next hearing date at item 7, and items 8 and 9.

2. **M-CV-0097214 Jenson, Andrew v. Bal, Nora**

The demurrer to the complaint is dropped from calendar as no moving papers were filed with the court and default and default judgment for possession were entered against the defendant on May 26, 2026.

3. **S-CV-0044551 Duncan, Royce D v. Mason, Thomas A**

This tentative ruling is issued by the **Honorable Todd D. Irby**.

Final Accounting

This matter is on for continued hearing on a final accounting after sale of real property by partition. By prior tentative ruling, the Court continued the hearing and noted a deficiency and some areas of the accounting that required additional explanation. Since then, plaintiff has filed and served notice of continued hearing, a supplemental final account, a corrected final account, and a declaration of counsel. All of the Court's previously noted concerns have now been addressed.

The newly filed documents raise a new issue for the Court, however, as the referee intends to refund to defendants any part of the withheld \$10,000 that is not used. However, no explanation is provided as to how such a refund would be implemented, especially in light of the fact that defendants' current service address appears to be the subject premises. Explanation is needed.

The Court, on its own motion, continues the hearing once more to be heard on **July 14, 2026 at 8:30 a.m. in Department 32**. By June 30, 2026, plaintiffs are directed to file and serve on all parties (1) a notice of continued hearing and (2) supplemental declaration(s) outlining a detailed plan for the refund to defendants of all or part of the withheld \$10,000.

4. **S-CV-0049793 Ratzak, Jessica v. Thinkware Systems USA Inc.**

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Preliminary Approval

Plaintiff seeks preliminary approval of the parties' class action settlement. The motion is unopposed. While the motion addresses several issues raised by the court the last time it considered preliminary approval of the parties' settlement (Law and Motion Minutes, Jan. 13, 2026), the court observes three areas where clarification is needed.

First, class counsel repeats throughout the moving papers and counsel's declaration that to obtain email addresses and mailing addresses for class members, class counsel shall serve subpoenas on known third-party retailers. However, the timeline class counsel proposes for notice to the class (to be provided within 20 days of preliminary approval) does not appear to take into consideration the time necessary to serve subpoenas on third-party retailers and receive those records. Explanation is needed.

Second, plaintiff provides a declaration from the settlement administrator. However, the information provided as to how the settlement administrator provides incomplete information for how an address will be updated when a postcard is returned as undeliverable, as the settlement administrator states only it "will use reasonable efforts to identify a mailing address and mail a copy of the postcard notice to such address." (Schwartz Decl. para. 13.) Explanation as to what these reasonable efforts will be is needed.

Third, the moving papers and the settlement agreement make clear plaintiff requests court authorization for settlement administration costs not to exceed \$100,000. It appears from the Schwartz declaration that this amount includes the costs of maintaining the Settlement Call Center and the Settlement Website. (Schwartz Decl., ¶¶ 19, 20, 21, 23.) However, the language of the settlement agreement appears to indicate the website and call center costs would be separate and apart from the administration costs that are not to exceed \$100,000. Explanation is needed.

In light of these issues, the court on its own motion continues this motion to be heard on **June 30, 2026 at 8:30 a.m. in Department 42**. By June 16, 2026, plaintiff shall file and serve notice of continued hearing and supplemental declaration(s) to address the court's observations noted in this ruling.

5. S-CV-0050615 Temple, Laura v. Action Water Sports of Incline Village

Defendant is advised that the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant Action Water Sports of Incline Village, LLC's Motion for Summary Judgment, or in the alternative, Summary Adjudication

Plaintiff Laura Temple ("Plaintiff") seeks damages for severe injuries sustained when she was struck by a boat propeller while swimming near a rented motorboat on Lake Tahoe on or about August 4, 2020. Plaintiff alleges that defendant Action Water Sports of Incline Village, LLC ("AWS") and related rental defendants were negligent in renting and equipping the vessel, failing to provide adequate boating instruction, safety training, warnings, and equipment, and violating Nevada law. Plaintiff further contends that defendants Michael Goodwin ("Goodwin"), Zakaria Stour ("Stour"), Shawn Willette ("Willette"), and Brenda Poot ("Poot") negligently operated the vessel by placing it in reverse while she was in the water, causing the accident. AWS denies liability and on or about May 30, 2023 filed a cross complaint against Goodwin, Stour, Willette, and Poot

contending that any injuries were caused by the actions of those individuals rather than AWS. AWS seeks, through its cross claims, contractual indemnity, equitable indemnity, contribution, and declaratory relief, alleging that the boat renters and operators are responsible for any judgment, settlement, defense costs, or other liability arising from Plaintiff's claims.

On or about December 17, 2025, AWS filed the present motion for summary judgment, or in the alternative, summary adjudication ("Motion") as to Plaintiff's first and second causes of action. AWS argues it did not owe Plaintiff any duty to avoid the inherent risks of recreational boating and swimming when Plaintiff was injured, and therefore, Plaintiff cannot establish as a matter of law the element of duty required for her claims and the claims are barred. AWS also argues that Plaintiff is unable to demonstrate that AWS caused her alleged injuries, and thus, Plaintiff's first and second causes of action fail. Plaintiff opposes the Motion arguing that federal maritime law governs the accident and does not recognize primary assumption of the risk as a complete bar to recovery, and that triable issues of material fact exist regarding AWS's negligence, statutory violations, and whether its alleged failures in training, warnings, and equipment were substantial factors in causing Plaintiff's injuries.

Evidentiary Objections

AWS objects to evidence offered in support of Plaintiff's opposition to the Motion. Specifically, AWS submits objections to the deposition testimony of investigating officer Jake Kreamer. The court rules on these objections as follows:

Objection Nos. 1, 2, 3, and 5 are overruled, except that the court does not consider any inadmissible hearsay or legal conclusions embedded within the challenged testimony.

Objection No. 4 is sustained for lack of foundation.

Objections Nos. 6 and 7 are also sustained as the testimony proffered constitutes inadmissible legal conclusions and are not proper subjects of opinion testimony.

Legal Standard

A defendant moving for summary judgment bears the initial burden of demonstrating that one or more elements of a cause of action cannot be established or that a complete defense exists. (Code of Civil Procedure ("CCP") § 437c, subd. (p)(2).) Summary judgment is appropriate if "all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to summary judgment as a matter of law." (CCP § 437c, subd. (c).) Only if the defendant meets that burden does the burden shift to the plaintiff to demonstrate the existence of a triable issue of material fact. The court views the evidence in the light most favorable to the opposing party and resolves doubts in favor of that party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

When a defendant moves for summary judgment based on primary assumption of risk, the defendant bears “the burden of establishing the plaintiff’s primary assumption of the risk by demonstrating that the defendant owed no legal duty to the plaintiff to prevent the harm of which the plaintiff complains.” (*Hamilton v. Martinelli & Associates* (2003) 110 Cal.App.4th 1012, 1020, quoting *Freeman v. Hale* (1994) 30 Cal.App.4th 1388, 1395.) The court must “determine whether the defendant has conclusively negated a necessary element of the plaintiff’s case or demonstrated that under no hypothesis is there a material issue of fact that requires the process of trial.” (*Bjork v. Mason* (2000) 77 Cal.App.4th 544, 548, quoting *Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 555, 675-674.)

The primary assumption of risk doctrine operates as a complete bar to recovery because it eliminates the defendant’s duty of care entirely. As the California Supreme Court explained in *Knight v. Jewett* (1992) 3 Cal.4th 296, fn. 4, when the primary assumption of risk applies, “the defendant owes no duty to protect the plaintiff from an injury-causing risk.” This distinguishes primary assumption of risk from secondary assumption of risk, where a duty exists but the plaintiff knowingly encountered risks from the defendant’s breach. (*Harry v. Ring the Alarm, LLC* (2019) 34 Cal.App.5th 749, 758.) When no triable issues of material fact exist regarding whether the defendant’s conduct fell outside the limited duty not to act recklessly or intentionally, courts can resolve cases where primary assumption of risk applies on summary judgment because “turning as it does on the legal question of duty is particularly amenable to resolution by summary judgment.” (*Gregory v. Cott* (2014) 59 Cal.4th 996, fn. 7; *Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 826.)

Discussion

A central issue in the parties’ submissions is whether federal maritime law governs Plaintiff’s claims. Plaintiff contends the accident occurred on navigable waters and arose from the operation of a recreational vehicle on Lake Tahoe, thereby invoking federal admiralty jurisdiction. AWS, on the other hand, argues the matter instead concerns the rental of a recreational vehicle used on a lake primarily devoted to recreation, and therefore, lacks a sufficient nexus to traditional maritime activity.

At this stage, the court is not persuaded that AWS has established, as a matter of law, that admiralty jurisdiction is unavailable. The United States Supreme Court in *Foremost Insurance Co. v. Richardson* (1982) 457 U.S. 668, established that admiralty jurisdiction may extend to recreational boating accidents on navigable waters, explicitly rejecting the requirement that the activity involve maritime commerce. The court held that a collision between two pleasure boats on navigable waters has a sufficient nexus to traditional maritime activity because “the federal interest in protecting maritime commerce cannot be adequately served if admiralty jurisdiction is restricted to those individuals actually engaged in commercial maritime activity” and “all operators of vessels on navigable waters are subject to uniform rules of conduct.” (*Id.* at p. 674-675.) Likewise, it appears that under the framework articulated in *Jerome B. Grubart, Inc. v. Great Lakes Dredge & Dock Co.* (1995) 513 U.S. 527, 534 admiralty jurisdiction exists where the alleged tort

occurs on navigable waters and bears a substantial relationship to traditional maritime activity.

Here, the alleged injury occurred during the operation of a motorboat on Lake Tahoe. Lake Tahoe has long been recognized by the Ninth Circuit as a navigable waterway of the United States. (*Davis v. United States* (1950) 185 F.2d 938, 939-940.) Additionally, vessel navigation appears to constitute a traditional maritime activity under the *Foremost* and *Grubart* cases.

AWS relies on the cases of *In re Blue Water Boating, Inc.* (9th Cir. 2019) 786 Fed.Appx. 793, an unpublished memorandum disposition, and *Matter of Branson Duck Vehicles, LLC* (W.D. Mo. 2019) 2019 WL 6352654, an unpublished federal district court decision, in support of its position that maritime law does not apply. Those authorities do not compel a different conclusion. In *Blue Water Boating*, the Ninth Circuit concluded that the rental of a stand-up paddleboard lacked a substantial relationship to traditional maritime activity because the alleged negligence did not implicate specialized concerns historically governed by maritime law. (*Blue Water Boating, supra*, 786 Fed.Appx. at pp. 704-705.) In contrast, in this instance, Plaintiff's claims arise from the operation and navigation of a motor vessel on navigable waters and a resulting propeller-strike injury. Similarly, *Branson Duck Vehicles* involved a district court's analysis of navigability and maritime commerce under circumstances materially different from those presented here. Neither decision appears to undermine the Supreme Court's holdings in *Foremost* and *Grubart* that recreational boating incidents involving vessel navigation on navigable waters may fall within admiralty jurisdiction.

To the extent that AWS argues that even if federal maritime law governs the dispute, California's primary assumption of risk doctrine may be applied as a supplemental rule of decision, the court agrees that maritime law does not invariably preempt all state law principles. (See *Wilburn Boat Co. v. Fireman's Fund Ins. Co.* (1955) 348 U.S. 310, 316, 321.) Nevertheless, even assuming California's primary assumption of risk doctrine may properly supplement maritime law in this context, AWS must still establish that there are no triable issues concerning whether it increased the risks inherent in the activity and whether its alleged conduct contributed to Plaintiff's injuries. The court concludes AWS has not made that showing.

Under California law, primary assumption of the risk relieves a defendant of a duty to protect participants from risks inherent in a recreational activity but does not bar liability where the defendant unreasonably increases the risks beyond those inherent in the activity. (*Knight, supra*, 3 Cal.4th at pp. 315-316; *Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1162.) AWS maintains Plaintiff's injuries resulted from an inherent risk associated with recreational boating and swimming near a vessel. Plaintiff, however, presents evidence from which a reasonable trier of fact could conclude AWS increased the risks associated with the activity. Specifically, Plaintiff presents evidence that AWS failed to adequately instruct participants regarding safe vessel operation, swimmer safety, and emergency procedures; failed to provide adequate warnings; rented the vessel

without an anchor; and failed to comply with statutory requirements governing the rental of motorboats.

Whether these alleged acts or omissions increased the risks beyond those inherent in recreational boating presents factual issues that cannot be resolved as a matter of law on summary judgment or adjudication. Accordingly, the court finds that AWS has not established that the primary assumption of risk constitutes a complete defense to Plaintiff's claims.

AWS argues in the alternative that Plaintiff cannot establish causation because Goodwin's operation of the boat constituted the sole cause of Plaintiff's injuries. Causation ordinarily presents a question of fact and may be resolved as a matter of law only where the undisputed facts permit but one reasonable conclusion. (*Kurini v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 864) Plaintiff contends AWS's alleged failures in training, instruction, warnings, equipment, and statutory compliance contributed to the circumstances leading to the accident. Plaintiff has presented evidence by which a reasonable trier of fact could conclude that AWS's conduct and the conduct of the vessel operators concurrently contributed to Plaintiff's injuries. The existence of potential negligence on the part of Goodwin or others involved in operating the boat does not establish, as a matter of law, that AWS's conduct was not a substantial factor in causing the harm.

When viewing the evidence in the light most favorable to Plaintiff, the court finds triable issues remain as to whether AWS's alleged acts or omissions were a substantial factor resulting in Plaintiff's injuries.

Finally, AWS seeks adjudication of Plaintiff's claim under Nevada Revised Statute section 488.730. Here, plaintiff establishes that factual disputes remain regarding AWS's compliance with the statutory requirements governing motorboat rentals and whether any alleged noncompliance contributed to the accident. The court finds that these disputes preclude summary adjudication.

AWS's motion for summary judgment, or in the alternative, summary adjudication, is denied.

6. S-CV-0051371 Engineer, Cash v. Ashby, Kaitlyn Emily

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise for Cash Engineer

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in

this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

Petition for Approval of Minor's Compromise for Elijah Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

Petition for Approval of Minor's Compromise for Leona Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

Petition for Approval of Minor's Compromise for Riley Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

7. S-CV-0053860 Gascon, Haley v. Sutter Medical Found.

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Motion for Summary Judgment

Defendant Richard G. Juarez moves for summary judgment of plaintiffs' complaint for (1) medical negligence and (2) loss of consortium. Plaintiffs' do not oppose the motion.

Defendant's request for judicial notice is granted.

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant submits evidence, including expert testimony, that he was the anesthesiologist for plaintiff Haley Gascon's appendectomy on July 29, 2023 and that his treatment of plaintiff complied with the standard of care at all times. (SSUMF Nos. 2–4, 6.) Performing surgery, including a laparoscopic appendectomy, is outside the anesthesiologist's scope of practice. (SSUMF No. 5.) To a reasonable degree of medical

probability, no act or omission attributable to Dr. Juarez caused or contributed to plaintiff's injuries. (SSUMF No. 7.)

Defendant presents sufficient evidence to support his initial burden of showing entitlement to judgment on plaintiff Haley Gascon's claim for medical negligence and plaintiff Christopher Gates' associated claim for loss of consortium.

The burden therefore shifts to plaintiffs to show one or more triable issues of material fact. As plaintiffs submitted no evidence and in fact filed a notice of non-opposition, plaintiffs fall short of their burden.

Based on the foregoing, defendant Richard G. Juarez's motion for summary judgment is granted.

8. S-CV-0054035 Rojas, Jasmine v. Ford Motor Co.

The motion for attorneys' fees is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0054693 Pereira, Christine v. Hammerhead Pools

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petitioner is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition to Confirm Arbitration Award

Petitioner Christine Pereira asks the court to confirm an arbitration award and enter judgment thereon against Hammerhead Pools, LLC. No opposition has been filed.

"A party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration" (Code Civ. Proc., § 1285.) Such a petition shall provide the agreement to arbitrate, the name(s) of the arbitrator(s), and the arbitrator's award. (Code Civ. Proc., § 1285.4.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, . . . unless in accordance with this chapter it corrects and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

The unopposed petition is granted as prayed. The court confirms the award of arbitrator issued on January 6, 2026 in favor of petitioner as against respondent Hammerhead Pools, LLC. Petitioner's request for pre-judgment interest is granted in the amount of \$14,149.47. Judgment is entered for petitioner against respondent Hammerhead Pools, LLC in the amount of \$454,512.83, which includes damages in the amount of \$335,361,

arbitration costs of \$26,000, attorneys' fees and costs of \$79,002.36, and prejudgment interest of \$14,149.47.

The court on its own motion schedules this matter for an order to show cause hearing on **July 21, 2026 at 9:00 a.m. in Department 32** regarding dismissal as to defendant Michael Marier who was not included in the arbitrator's award.

10. S-CV-0054901 Zehring, Richard v. General Motors

Motion to Compel Deposition

Plaintiff moves for an order compelling deposition and production of deposition documents pursuant to Code of Civil Procedure section 871.26(c) and imposing monetary sanctions of \$2,500 against defense counsel pursuant to Code of Civil Procedure section 871.26(j). The motion is unopposed.

Plaintiff submits evidence he served defendant four deposition notices to depose its person most qualified ("PMQ"), all of which defendant objected to. Plaintiff also submits evidence that defendant was not being forthcoming with dates to reschedule the PMQ deposition. Plaintiff submits evidence he served a fourth amended deposition notice scheduled for February 3, 2026 and indicates it is anticipated defendant will not comply with the deposition date. However, this motion was filed on January 20, 2026, before the date for deposition had passed. As the motion is unopposed and no reply was filed, the court has not been presented with any evidence that deposition of defendant's PMQ did not proceed as scheduled on February 3, 2026.

The court on its own motion continues this motion to **July 7, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to file and serve (1) a notice of continued hearing and (2) supplemental declaration(s) updating the court on whether deposition occurred on February 3, 2026 as noticed in the fourth amended deposition notice.

11. S-CV-0055995 Panasyuk, Benjamin A v. County of Placer

The demurrer to the complaint is continued to **July 24, 2026 at 8:30 a.m. in Department 1** to be heard by Commissioner Christine S. Dehr together with a motion to strike filed in the same action. Department 1 is located at 101 Maple Street, Auburn, California 95603.

12. S-CV-0056237 Forrest, Devin v. Mav KG LLC

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Motion to Stay PAGA Action

Defendant moves to stay this PAGA action pending resolution of a motion to compel arbitration in a related class action pursuant to Code of Civil Procedure section 1281.4. In

the alternative, defendant moves for a discretionary stay of this PAGA action pending resolution of the federal class action. Plaintiff opposes the motion in its entirety.

Plaintiff filed a class action lawsuit against defendant in Placer County, but this case has since been removed to the California Eastern District Court. On February 18, 2025, defendant filed a motion to compel arbitration of plaintiff's individual claims and to dismiss the class claims. On September 29, 2025, the court denied the motion to compel arbitration. On October 20, 2025, defendant filed a motion for reconsideration, which the federal court has taken under submission. The federal court has not yet ruled on this motion. Plaintiff filed this PAGA action against the same defendant on September 17, 2025. The class action matter alleges several violations of the Labor Code; the action for PAGA penalties is based on the same violations of the Labor Code.

Regarding the motion for mandatory stay, Code of Civil Procedure section 1281.4 provides, in pertinent part:

If an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

Defendant acknowledges the motion to compel arbitration has been denied in the class action but argues it remains undetermined because defendant's motion for reconsideration of the denied motion to compel arbitration has not yet been ruled on. While the court sees the logic in this argument, defendant presents no authority supporting a mandatory stay applies given the procedural posture of this case. Defendant's motion for mandatory stay pursuant to Code of Civil Procedure section 1281.4 is denied.

Regarding a discretionary stay, defendant argues the PAGA action is "duplicative" of the class action because both actions involve the same parties, the same attorneys, and the same legal and factual issues. Defendant contends discovery and motion practice would be duplicative and would run the risk of contradictory rulings between the courts. Preliminarily, the court agrees with plaintiff's position that a PAGA action and a class action are not "duplicative" and in fact distinct actions with different remedies. However, "[t]rial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. [Citations.]" (*Freiberg v. City of Mission Viejo* (1994) 33 Cal.App.4th 1484, 1489.) In light of the overlapping factual and legal issues and because the parties are the same in each action, the court finds a stay would serve judicial economy and avoid inconsistent rulings between the actions. Defendant's motion for discretionary stay is granted.

The case management conference scheduled for July 17, 2026 is hereby vacated. The court schedules this matter for an order to show cause hearing regarding the status of stay on **December 11, 2026 at 8:30 a.m. in Department 1**. Department 1 is located at 101 Maple Street, Auburn, California 95603.

13. S-CV-0056819 Raines Owner LLC v. Rojas, Dylan Michael

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Dismiss Complaint

Defendants Acrisure of California LLC, Acrisure of California Partner Group LLC, and Acrisure West Insurance Services LLC move to dismiss the action for (1) lack of subject matter jurisdiction or, in the alternative, (2) on forum non conveniens grounds in the interests of justice. Plaintiff opposes the motion.

The request for joinder to the motion by defendants Brock Regan Tillotson and Dylan Michael Rojas is granted.

As to the argument that this court lacks subject matter jurisdiction, defendants contend this action concerns damages to real property located in the State of Tennessee and it is therefore a local action that shall be heard in the State of Tennessee. In support of this argument, defendants rely in part on Tennessee Code section 20-4-103, which provides:

In actions commenced by the attachment of property without personal service of process, and in cases where the suit is brought to obtain possession of personal property, or to enforce a lien or trust deed or mortgage, or where it relates to real property, the attachment may be sued out or suit brought in any county where the real property, or any portion of it, lies, or where any part of the personal property may be found.

Preliminarily, this is a venue statute describing what county in which an action should be brought in the State of Tennessee. It does not support a finding that this court lacks subject matter jurisdiction to hear this case. Plaintiff's complaint alleges causes of action for breach of fiduciary duty, negligence, intentional misrepresentation, concealment, negligent misrepresentation, and an Unfair Competition Law claim. These claims are based in professional negligence and fraud rather than claims for the recovery of or title to real property. While plaintiff's complaint involves facts pertaining to real property located in Tennessee, it does not include any allegations any defendant caused the damage to the real property. Moreover, the alleged wrongdoing is alleged to have occurred within the State of California. The complaint further alleges that the individual defendants reside in the State of California. It appears from the face of the complaint and the claims therein that this court has subject matter jurisdiction over these claims and

defendants' motion fails to demonstrate any reason this court would lack subject matter jurisdiction.

Defendants in the alternate ask the court to dismiss or stay this action as California an inconvenient forum. "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." (Code Civ. Proc., § 410.30, subd. (a).) The burden of proof is on the party asserting forum non conveniens. (*Fox Factory, Inc. v. Super. Court* (2017) 11 Cal.App.5th 197, 204.) When analyzing such a motion, "[t]he court 'must first determine whether the alternate forum is a "suitable" place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California.'" (*Id.*, at p. 203, quoting *Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751.)

Here, it appears Tennessee is a suitable alternate forum for trial in this action, as all defendants by way of motion or by way of joinder agree to the forum. As to the private factors, while some of the witnesses would be located in Tennessee, other witnesses would be in California. Two of the defendants reside in California whereas plaintiff is located in Tennessee. Defendants do not submit evidence as to where the other entity defendants are located. In light of the information presented, the private factors weigh slightly in favor of California. The public factors, however, weigh heavily in favor of California. California has a strong interest in regulating the alleged wrongdoing of insurance brokers operating within its borders. California also has an interest in protecting consumers under the Unfair Competition Law. Defendants fall short of their burden of showing of showing the interests of justice would be served if the action were heard in a different forum.

Based on the foregoing, the motion to dismiss for lack of subject matter jurisdiction is denied and the alternative motion to dismiss or stay the action due to forum non conveniens is denied.

14. S-CV-0056953 Nickell, Andrew v. PG&E

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petition for Approval of Minor's Compromise

The petition is granted as prayed. After careful consideration of the petition and the supporting attachments, the court finds the settlement is in the best interest of the minor. If oral argument is requested, the appearance of the minor at the hearing is excused.